

STATE OF IOWA
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE EXAMINERS

_____	)	
IN THE MATTER OF	)	
	)	
RANDALL L. KIEL,	)	CONSENT AGREEMENT
	)	
APPLICANT	)	
_____	)	

The Iowa Board of Behavioral Science Examiners (Board) and Randy Kiel (Applicant) enter into this Consent Agreement (Agreement) pursuant to Iowa Code Sections 17A.10, 272C.3(4) (2001).

1. Upon approval of this Agreement by the Board, the Applicant shall receive a license to practice as a Mental Health Counselor in the State of Iowa, subject to an indeterminate period of probation. The probationary period shall commence on the execution date of this Agreement. The execution date is that date which accompanies the Board Chairperson's signature. During the probationary period, the Applicant shall comply with the following terms:

- (a) The Applicant shall comply with all relevant statutes and administrative rules in his practice as a Mental Health Counselor in the State of Iowa.
- (b) The Applicant shall only practice mental health counseling in the State of Iowa under the professional supervision of a Mental Health Counselor licensed by the Board. Except as provided otherwise by the terms of this Agreement, the professional supervision of the Applicant's mental health counseling services shall be administered consistently with the standards and provisions delineated by 645 Iowa Administrative Code section 30.4(2). See Attached Exhibit 1.
- (c) The professional supervision required by this Agreement shall only be provided by persons approved by the Board. The Applicant shall be responsible for obtaining Board approval for any potential supervisor prior to the commencement of that person's supervision services.
- (d) The Applicant shall be responsible for paying the costs of procuring the professional supervision required by this Agreement.

- (e) The Applicant shall file quarterly reports with the Board attesting to the following information detailing his practice as a Mental Health Counselor since the previous report was filed:
- 1) The name and location of all places of business where the Applicant practiced mental health counseling;
 - 2) The number and type of counseling contact hours performed;
 - 3) The number of individual supervision hours completed; and,
 - 4) The names of all persons who provided professional supervision services.

All quarterly reports required by this Agreement shall be typewritten and signed by the Applicant. The first report required by this Agreement shall be submitted to the Board by ^{August} ~~May~~ 1, 2001, and each report thereafter shall be submitted by the first day of every subsequent third month. The failure of the Applicant to provide complete and truthful information in the required quarterly reports shall constitute a violation of this Agreement.

- (f) The Board or its designee may contact any person identified as supervising the Applicant's mental health counseling services to verify the number of supervision hours completed and to obtain evaluations of the Applicant's competency as a Mental Health Counselor.
- (g) Upon request of the Board, the Applicant shall appear before the Board to report on the status of his practice as a Mental Health Counselor and to answer any questions or concerns the Board may have regarding his probation. The Board shall provide the Applicant with reasonable notice of the date, time, and place for any requested appearance. The Applicant agrees that any such appearance would be governed by 645 Iowa Administrative Code section 9.7 (June 2, 1999) and that he waives any and all objections to the members of the Board both participating in the appearance and later participating as decision makers in a contested case proceeding.

2. Upon the Applicant's successfully completion of 100 hours of supervision concurrent with 1,000 hours of mental health counseling conducted in face-to-face

contact with individuals or groups, the Applicant may petition the Board to rescind the probation imposed by this Agreement. Only supervised clinical contact may be credited for this requirement. All 100 hours of supervision must be individual supervision. The Applicant's request to end probation shall be submitted to the Board in writing through the Board administrator.

3. Upon a finding by the Board that the Applicant has successfully completed all required supervision hours and abided by all other probationary terms imposed by this Agreement, the Board shall grant the Applicant an unrestricted license to practice Mental Health Counseling in the State of Iowa free of any and all probationary conditions.

4. Should the Applicant violate the terms of this Consent Agreement in any respect, the Board may institute formal disciplinary proceedings. This Agreement shall be made part of the permanent record of the Iowa Board of Behavioral Science Examiners, and violations of this Agreement may be considered by the Board in determining the nature and severity of any future disciplinary action.

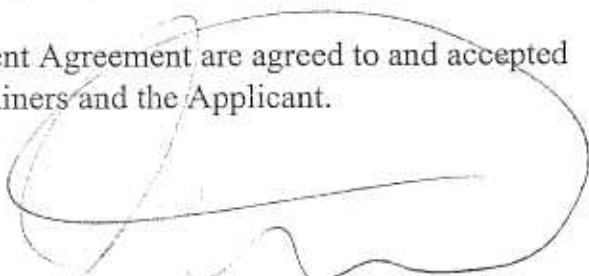
5. The Applicant voluntarily submits this Agreement to the Board for its consideration. This Agreement, however, is subject to approval by the Board. If the Board fails to approve this Agreement, it shall be of no force or effect on either party.

6. This Agreement is public record available for inspection and copying in accordance with Iowa Code Sections 272C.3(4) (2001).

WHEREFORE, the terms of this Consent Agreement are agreed to and accepted by the Iowa Board of Behavioral Science Examiners and the Applicant.



Randy Kiel
Applicant



Stanton L. Visser, Chairperson
Board of Behavioral Science Examiners

2-1-01

Date

4-6-2001

Date